

Robin Bansal vs Central Bureau Of Investigation on 22 August, 2025

Author: Rajeev Misra

Bench: Rajeev Misra

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2025:AHC:144747

Reserved on: 28.05.2025

Delivered on: 22.08.2025

Court No. - 80

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 46954 of 2024

Applicant :- Robin Bansal

Opposite Party :- Central Bureau Of Investigation

Counsel for Applicant :- Atharva Dixit,Kartikeya Shukla,Sr. Advocate

Counsel for Opposite Party :- Sanjay Kumar Yadav

along with

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 46957 of 2024

Applicant :- Robin Bansal

Opposite Party :- Central Bureau Of Investigation

Counsel for Applicant :- Atharva Dixit,Kartikeya Shukla,Sr. Advocate

Counsel for Opposite Party :- Sanjay Kumar Yadav

Hon'ble Rajeev Misra, J.

1. Heard Mr. Kartikey Shukla, the learned counsel for appellant and Mr. Rahul Srivastava, the learned counsel representing CBI/opposite party.

2. These repeat applications for bail have been filed by applicant- Robin Bansal seeking his enlargement on bail.

3. Criminal Misc. Repeat Bail Application No. 46954 of 2024 (Robin Bansal Vs. CBI) has been filed by applicant-Robin Bansal seeking his enlargement on bail in Case Crime No./R.C. No. 1202018A0008, Police Station-CBI/ACB/Ghaziabad, under Sections 120-B read with Section 420, 403, 409, 467, 468, 471 IPC and Substantive Offence under Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 13(1)(A) of The Prevention of Corruption Act, 1988 during the pendency of trial i.e. Special Case No. 05 of 2021 (CBI Vs. Robin Bansal and others), under Sections 120-B read with Section 420, 403, 409, 467, 468, 471 IPC and Substantive Offence under Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 13(1)(A) of The Prevention of Corruption Act, 1988, Police Station-CBI/ACB/Ghaziabad, District-Ghaziabad now pending in the Court of Special Judge, CBI-3, Ghaziabad.

4. Criminal Misc. Bail Application No. 46957 of 2024 (Robin Bansal Vs. CBI) has also been filed by applicant-Robin Bansal seeking his enlargement on bail in Case Crime No./R.C. No. 1202018A0008, Police Station-CBI/ACB/Ghaziabad, under Sections 120-B read with Section 420, 409, 468, 471 IPC and Substantive Offence under Sections 409, 420, 468, 471 IPC and Section 13(2) read with Section 13(1)(d) of The Prevention of Corruption Act, 1988 during the pendency of trial i.e. Special Case No. 01 of 2022 (CBI Vs. Robin Bansal), under Sections 120-B read with Section 420, 409, 468, 471 IPC and Substantive Offence under Sections 409, 420, 468, 471 IPC and Section 13(2) read with Section 13(1)(d) of The Prevention of Corruption Act, 1988, Police Station-CBI/ACB/Ghaziabad, District-Ghaziabad now pending in the Court of Special Judge, CBI-3, Ghaziabad.

5. It is thus apparent that both the applications for bail have been filed by the same applicant in respect of the same case crime number.

6. First bail application of applicant was rejected by this Court by a detailed order dated 31.08.2024 passed in Criminal Misc. 1st Bail Application No.23913 of 2023 along with connected Criminal Misc. 1st Bail Application No.23897 of 2023. For ready reference, the same is reproduced hereinbelow:

1. Heard Mr. Dileep Kumar, the learned Senior Counsel assisted by Mr. Rajrshi Gupta, the learned counsel for applicant-Robin Bansal and Mr. Gyan Prakash Srivastava, the learned Deputy Solicitor General of India assisted by Mr. Sanjay

Kumar Yadav, the learned counsel representing CBI.

2. Perused the record.

3. Criminal Misc. Bail Application No. 23897 of 2023 (Robin Bansal Vs. CBI) has been filed by applicant-Robin Bansal seeking his enlargement on bail in Case Crime No./R.C. No. 1202018A0008, Police Station-CBI/ACB/Ghaziabad, under Sections 120-B read with Section 420, 403, 409, 467, 468, 471 IPC and Substantive Offence under Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 3(1)(A) of The Prevention of Corruption Act, 1988 during the pendency of trial i.e. Special Case No. 05 of 2021 (CBI Vs. Robin Bansal and others), under Sections 120-B read with Section 420, 403, 409, 467, 468, 471 IPC and Substantive Offence under Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 3(1)(A) of The Prevention of Corruption Act, 1988, Police Station-CBI/ACB/Ghaziabad, District-Ghaziabad now pending in the Court of Special Judge, CBI-3, Ghaziabad.

4. Criminal Misc. Bail Application No. 23913 of 2023 (Robin Bansal Vs. CBI) has also been filed by applicant-Robin Bansal seeking his enlargement on bail in Case Crime No./R.C. No. 1202018A0008, Police Station-CBI/ACB/Ghaziabad, under Sections 120-B read with Section 420, 409, 468, 471 IPC and Substantive Offence under Sections 409, 420, 468, 471 IPC and Section 13(2) read with Section 3(1)(d) of The Prevention of Corruption Act, 1988 during the pendency of trial i.e. Special Case No. 01 of 2022 (CBI Vs. Robin Bansal), under Sections 120-B read with Section 420, 409, 468, 471 IPC and Substantive Offence under Sections 409, 420, 468, 471 IPC and Section 13(2) read with Section 3(1)(d) of The Prevention of Corruption Act, 1988, Police Station-CBI/ACB/Ghaziabad, District-Ghaziabad now pending in the Court of Special Judge, CBI-3, Ghaziabad.

5. It is thus apparent that both the applications for bail have been filed by the same applicant in respect of the same case crime number.

6. At the very outset, Mr. Dilip Kumar, the learned senior counsel for applicant contends that co-accused Vivek Kumar has already been enlarged on bail by this Court, vide order dated 07.08.2024 passed in Criminal Misc. Bail Application No. 24342 of 2023 (Vivek Kumar Vs. CBI). For ready reference, the same is reproduced herein below:-

Heard Mr. Rajeev Lochan Shukla, the learned counsel for applicant, Mr. Gyan Prakash, the Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing C.B.I. Perused the record.

This application for bail has been filed by applicant Vivek Kumar seeking enlargement on bail in RCC No. 1202018A0008 of 2018, dated 25.10.2018, under Section 120B, 409, 420, 467, 468, 471 I.P.C. and Section 13 (2) read with 13 (1) (a)

Prevention of Corruption Act 1988, Police Station C.B.I./ACB, District Ghaziabad, during the pendency of trial i.e Special Case No. 05 of 2021 (C.B.I. Vs. Vivek Kumar), now pending in the Court of Special Judge (Antic Corruption), C.B.I., Court No. 3, Ghaziabad.

At the very outset, the learned counsel for applicant contends that applicant was initially implicated under Sections 409, 420, 468, 471 and 120B IPC and Section 13 (1) (b) and 13 (1) (d) of Prevention of Corruption Act. He, accordingly, moved bail application before the Court below, which was rejected. Thereafter, the applicant approached this Court by means of Criminal Misc. Bail Application No. 19139 of 2023 (Vivek Kumar Vs. C.B.I.), which was allowed, vide order dated 28.4.2023. For ready reference, the same is reproduced herein under:-

"1. Heard Mr. Rajiv Lochan Shukla, Advocate alongwith Mr. Marjeet Mishra, the learned counsel for applicant and Mr. Gyan Prakash, Senior Advocate, Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing opposite party-1 i.e. C.B.I.

2. Perused the record.

3. This application for bail has been filed by applicant-Vivek Kumar in connection with F.I.R. No. RCC No. 1202018A0008 of 2018, dated 25.10.2018 under sections 409, 420, 468, 471, 120B I.P.C. and Sections 13(1) C, 13(1) (d) Prevention of Corruption Act, 1988, Police Station C.B.I./ACB, District-Ghaziabad, during the pendency of trial.

4. Record shows that an F.I.R. dated 25.10.2018 was lodged by first informant namely C.B.I., which was registered as F.I.R. No. 1202018A0008 of 2018, dated 25.10.2018 under sections 120B, 409, 420, 467, 468, 471, 120B I.P.C. and Sections 13(2) r/w, 13(1) (a) Prevention of Corruption Act, 1988, Police Station C.B.I./ACB, District-Ghaziabad. In the aforesaid F.I.R. two persons namely, Robin Bansal and Vivek Kumar (applicant herein) have been nominated as named accused.

5. The gravamen of the allegations made in the F.I.R is to the effect tha named accused by playing fraud and forgery have misappropriated bank money and thereby caused loss to the Bank to the tune of Rs. 473.96 Lakhs.

6. After registration of aforesaid E.I.R, Investigating Officer proceeded with statutory investigation of aforementioned F.I.R. in terms of Chapter XII Cr.P.C. He examined first informant and other witnesses under Sections 161 Cr.P.C. On the basis of above and other material collected by Investigating Officer during course of investigation, he came to the conclusion that complicity of other named accused is also established in the crime in question. Accordingly he opined to submit the charge-sheet against named accused as well as not named accused. Resultantly, he submitted police report

(charge sheet) dated 13.11.2021 under section 173(2) Cr.P.C. whereby and where-under named accused Robin Bansal and Vivek Kumar (applicant herein) have been charge-sheeted. Subsequently, Investigating Officer submitted supplementary charge sheet dated 31.12.2021, whereby 13 persons not named in the F.I.R. have been charge sheeted.

7. Learned counsel for applicant submits that in the interregnum, the applicant, who is an employee of Indian Overseas Bank, Which is a Private Sector Bank, departmental proceedings were initiated against applicant. However, in the departmental proceedings no substantial evidence was found against applicant. Resultantly, Enquiry Officer submitted the enquiry report dated 09.10.2018. On the basis of aforesaid enquiry report, the applicant was awarded minor punishment, whereby three increments of applicant were stopped for a period of 2 years.

8. On the above premise, the learned counsel for applicant submits that in view of above, it can be said that applicant is guilty of having committed an economic offence, which is punishable under any of the charging sections. He also submits that applicant is an employee of the Bank. He is in custody since 21.02.2023. As the charge sheet have been submitted against applicant, therefore, the evidence sought to be relied upon by the prosecution against applicant stands crystallised. There is no such circumstance warranting custodial arrest of applicant during the pendency of trial. The role of the applicant, if any in the crime in question is of a limited nature. At this stage, it can be conclusively concluded that applicant is guilty of misappropriating public money. The main role has been assigned to co-accused Robin Bansal. Moreover, complicity is a closed door affair and therefore, same is subject to trial evidence. He therefore submits that applicant is liable to be enlarged on bail. In case applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with trial.

9. Mr. Gyan Prakash, the Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing opposite party-1 i.e. C.B.I. has vehemently opposed this application for bail. He submits that since the applicant is a charge-sheeted accused, therefore, applicant does not deserve any indulgence by this Court. It is next contended that applicant is guilty of committing an economic offence. The parameters for granting bail in respect of economic offence are far more stringent than the parameters for grant of bail for an offence under common criminal law. Since the applicant is guilty of committing an economic offence and he has also been charge-sheeted under the Prevention of Corruption Act, therefore, the bail application of applicant is liable to be rejected. In case the applicant is enlarged on bail, he shall hamper the trial proceedings. He has then invited the attention of Court to the order dated 14.02.2023 passed in Criminal Misc. Anticipatory Bail Application U/S 438 Cr/P.C. No. 429 of 2023 (Vivek Kumar Vs. C.B.I.). For ready reference, the same is reproduced herein-uncer:

"1. Heard learned counsel for the applicant, Sri Gyan Prakash Srivastava, learned Deputy Solicitor General/ Senior Advocate assisted by Sri Sanjay Kumar Yadav, learned counsel for the CBI and perused the record.

2. The present application under Section 438 Cr.P.C. has been filed by the applicant seeking bail in anticipation of his arrest in Special Case No. 1 of 2022, arising out of Case Crime No.R.C. 1202018A0008, under Sections 409, 420, 468, 471, 120B IPC and Section 13(2), 13(1)(C), 13(1)(D) of Prevention of Corruption Act, Police Station-C.B.I./ A.C.B., Ghaziabad.

3. On complaint of General Manager, Indian Overseas Bank, Regional Branch, Meerut, CBI registered an FIR as R.C. No. 1202018A0008 at CBI/ACB, Ghaziabad. The allegation and the FIR are that Robin Bansal, Assistant Manager is Bantikhera, Shamli, U.P. has sanctioned 14 demand loans for amount of Rs.331.27, 6 saving accounts for Rs.19.26 lakh, six KCC loan for amount of Rs.15.89 lakh and 24 Mudra loan for amount of Rs.37.44 lakh total amount of Rs.4,77,00,000/-. These amounts were deposited by Robin Bansal in his own account. Thereafter, the entire amount was transferred in the account of M/s India Infoline Ltd., Yes Bank, Mumbai for investment in equities and commodities. The accused applicant was also Assistant Manager of the Overseas Bank along with Robin Bansal. His user ID was used and some accused applicant had accessed the said accounts by using of login user ID and some accounts were allegedly verified by him. There are 17 mudra loan accounts were opened which were accepted and transactions were verified by the accused applicant. There are 8 KCC saving accounts and which were similarly accessed and transactions were verified by the accused applicant. Some transactions are in the bank account of the brother of the accused applicant in which money got transferred from the fraudulent account opened in the Bank allegedly by Robin Bansal.

4. Learned counsel for the accused applicant submits that he was the person who informed the higher authority regarding fraud having been committed by Robin Bansal on which inquiry was held and FIR came to be registered. He also submits that entire amount which was transferred in his account and his brother's account had been returned to the Bank. Charge sheet has already been filed and therefore there is no purpose would be served in keeping the applicant in custody as he is not in a position to influence to any witnesses or tempering with the evidence. Therefore, he submits that the accused applicant may be enlarged on bail.

5. Sri Gyan Prakash Srivastava, Deputy Solicitor General/ Senior Advocate assisted by Sri Sanjay Kumar Yadav, learned counsel for the CBI submits that involvement of the accused applicant has been fully established during the course of investigation and there is sufficient evidence against the applicant regarding involvement in commission of offence along with other co-accused. He further submits that merely on the ground that the accused applicant has not been visited major penalty in departmental proceedings and he has been awarded minor punishment withholding

three increments for two years. Accused applicant is said to be involved in commission of crime and CBI has collected sufficient evidence against him. In view thereof, looking at the allegation against the accused applicant and the evidence collected during the course of investigation, the case of the accused applicant does not fall within the parameter of Section 438 Cr.P.C. and therefore application of the accused applicant may be dismissed.

6. I have considered the submissions advanced by learned counsel for the parties.

7. The allegation against the accused applicant is that he in connivance with Robin Bansal and other co-accused had misappropriated the bank money to the extent of Rs.4.77 crore. Whether it was accused applicant who used the user ID or allowed the co-accused to use his user ID is question of fact. However looking at the allegations and financial and banking fraud by allegedly none other than the accused and Robin Bansal who were the Assistant Manager of the bank and were trustees of the bank fund, who allegedly had committed financial fraud, this court does not find that the case of the accused applicant falls within the parameter of Section 438 Cr.P.C.. Therefore, the bail application is rejected.

8. However, it is provided that if the accused-applicant surrenders before the court concerned within 10 days from today and applies for regular bail, his bail application shall be considered expeditiously, in accordance with law, keeping in mind the accused applicant has been visited with minor penalty in departmental proceedings and he is serving in the Bank as well as charge sheet has already been filed.

Order Date :- 14.2.2023 "

10. On the above premise, he submits that same submissions that have been urged in support of present application were also urged before this Court at the time of consideration of aforementioned anticipatory bail application but they did not favour with the Court. He therefore submits that in view of similar situation, no indulgence be granted by this Court in favour of applicant.

11. In rejoinder Mr. Rajiv Lochan Shukla, the learned counsel for applicant contends that anticipatory bail is granted on the premise that there exists an exceptional circumstance whereas all other grounds available to an accused can be considered at the time considering the bail application. The order dated 14.02.2023 passed by this Court rejecting the anticipatory bail application of applicant, cannot be construed as res-judicata or estoppel against applicant.

12. Having heard Mr. Rajiv Lochan Shukla, alongwith Mr. Marjeet Mishra, the learned counsel for applicant and Mr. Gyan Prakash, Senior Advocate, Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing opposite party-1 i.e. C.B.I., upon consideration of evidence on record,

accusations made as well as complicity of applicant coupled with the fact that the charge-sheet has already been submitted against applicant, as such evidence sought to be relied upon by the prosecution against applicant stands synchronised, there is no such exceptional circumstance on the basis of which it can be said that custodial arrest of applicant is absolutely necessary during the course of trial, in the departmental proceedings initiated against applicant in respect of same charge, only minor punishment of stopping three increments for a period of two years has been imposed against applicant, the main role has been assigned to co-accused Robin Bansal, the role of applicant if any is of a limited nature, conspiracy is a closed door affair and thus subject to trial evidence, applicant being a man of clean antecedents inasmuch he has not criminal history to his credit except the present one but without expressing any opinion on the merits of the case, applicant has made out a case for bail.

13. Accordingly, present application for bail is allowed.

14. Let the applicant-Vivek Kumar involved in aforesaid case crime number be released on bail on furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(I) Applicant will not tamper with prosecution evidence.

(ii) Applicant will abide the orders of court, will attend the court on every date and will not delay the disposal of trial in any manner whatsoever.

(iii) Applicant will not indulge in any unlawful activities.

(iv) Applicant will not misuse the liberty of bail in any manner whatsoever.

15. The identity, status and residential proof of sureties will be verified by court concerned and in case of breach of any of the conditions mentioned above, court concerned will be at liberty to cancel the bail of applicant and send him to prison"

Learned counsel for applicant contends that subsequent to above order dated 28.4.2024, Section 403 IPC and Sections 13 (1) (a) and 13 (1) (2) of the Prevention of Corruption Act have been added. It was on account of above, the applicant filed bail application before Court below seeking enlargement on bail in aforementioned added Sections, which has been rejected by Court below.

Learned counsel for applicant contends that since applicant has already been enlarged on bail under the parent sections, therefore no good ground exists to deny bail to the applicant under the added Sections. He, therefore, contends that primarily for the facts and reasons recorded in the earlier bail order dated 28.4.2023, the

applicant is also liable to be enlarged on bail under added Sections.

Per contra, Mr. Sanjay Kumar Yadav, the learned counsel representing C.B.I. has opposed the prayer for bail. However, he could not dislodge the factual and legal submissions urged by the learned counsel for applicant with reference to record at this stage.

Having heard the learned counsel for applicant, Mr. Gyan Prakash, Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing C.B.I., upon perusal of record, evidence, nature and gravity of offence, accusations made, complicity of accused, this Court finds that since the applicant has been enlarged on bail under the main Sections primarily on the grounds that in respect of criminality alleged to have been committed by the applicant departmental proceedings initiated, wherein he was acquitted of most of the charges, a minor penalty of temporary stoppage of three increments for two years was imposed against the applicant, considering the above, the clean antecedents of applicant, the period of incarceration undergone, applicant is a public servant, therefore, in case, the applicant is enlarged on bail, there are no chances of his fleeing away from the trial, the police report in terms of Section 173 (2) Cr. P.C. has already been submitted, therefore, entire evidence sought to be relied upon by the prosecution against applicant stands crystallized yet in spite of above, the learned Deputy Solicitor General of India could not point out any such circumstance from the record necessitating the custodial arrest of applicant during the pendency of trial, this Court finds that no useful purpose shall be served in prolonging the custodial arrest of applicant during the pendency of trial, therefore, irrespective of the objections raised by the learned A.G.A. in opposition to the present application for bail, but without making any comments on the merits of the case, applicant has made out a case for bail.

The bail application is, accordingly, allowed.

Let the applicant Vivek Kumar be released on bail in aforesaid case crime number on his furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(i) THE APPLICANT SHALL FILE AN UNDERTAKING TO THE EFFECT THAT HE/SHE SHALL NOT SEEK ANY ADJOURNMENT ON THE DATE FIXED FOR EVIDENCE WHEN THE WITNESSES ARE PRESENT IN COURT. IN CASE OF DEFAULT OF THIS CONDITION, IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT IT AS ABUSE OF LIBERTY OF BAIL AND PASS ORDERS IN ACCORDANCE WITH LAW.

(ii) THE APPLICANT SHALL REMAIN PRESENT BEFORE THE TRIAL COURT ON EACH DATE FIXED, EITHER PERSONALLY OR THROUGH HIS/HER COUNSEL. IN CASE OF HIS/HER ABSENCE, WITHOUT SUFFICIENT CAUSE, THE TRIAL COURT MAY PROCEED AGAINST HIM/HER UNDER SECTION 229-A IPC.

(iii) IN CASE, THE APPLICANT MISUSES THE LIBERTY OF BAIL DURING TRIAL AND IN ORDER TO SECURE HIS/HER PRESENCE PROCLAMATION UNDER SECTION 82 CR.P.C., MAY BE ISSUED AND IF APPLICANT FAILS TO APPEAR BEFORE THE COURT ON THE DATE FIXED IN SUCH PROCLAMATION, THEN, THE TRIAL COURT SHALL INITIATE PROCEEDINGS AGAINST HIM/HER, IN ACCORDANCE WITH LAW, UNDER SECTION 174-A IPC.

(iv) THE APPLICANT SHALL REMAIN PRESENT, IN PERSON, BEFORE THE TRIAL COURT ON DATES FIXED FOR (1) OPENING OF THE CASE, (2) FRAMING OF CHARGE AND (3) RECORDING OF STATEMENT UNDER SECTION 313 CR.P.C. IF IN THE OPINION OF THE TRIAL COURT ABSENCE OF THE APPLICANT IS DELIBERATE OR WITHOUT SUFFICIENT CAUSE, THEN IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT SUCH DEFAULT AS ABUSE OF LIBERTY OF BAIL AND PROCEED AGAINST THE HIM/HER IN ACCORDANCE WITH LAW.

(v) THE TRIAL COURT MAY MAKE ALL POSSIBLE EFFORTS/ENDEAVOUR AND TRY TO CONCLUDE THE TRIAL WITHIN A PERIOD OF ONE YEAR AFTER THE RELEASE OF THE APPLICANT.

13. However, it is made clear that any wilful violation of above conditions by the applicant, shall have serious repercussion on his bail so granted by this Court and the trial court is at liberty to cancel the bail, after recording the reasons for doing so, in the given case of any of the condition mentioned above.

7. Record shows that an FIR dated 25.10.2018 was lodged by first informant-Reyazul Haque, Chief Regional Manager, Indian Overseas Bank, Regional Office, Meerut and was registered as Case Crime No./R.C. No. 1202018A0008, Police Station-CBI/ACB/Ghaziabad, under Sections 120-B, 409, 420, 467, 468 & 471 IPC and Section 13(2) read with Section 13(1)(a) of The Prevention of Corruption Act, 1988. In the aforesaid FIR, applicant Robin Bansal has been nominated as named accused, whereas some unknown persons have also been arraigned as accused.

8. That Crux of the First Information Report is to the effect that fraud has been committed by the staff member/ public servant in various portfolios of advances and deposits, KCC, Mudra Loans and Savings Bank Accounts of the customers. The details of the same are as follows:-

Sr. No. Nature of Advances/Portfolio No. of Accounts Aggregate Amount (loss) As 24.09.2018 (Rs. In Lacs) Alleged Demand Loans against Deposits 331.27 Alleged transactions in SB accounts of various customers 89.26 Alleged transactions in

existing KCC loans 15.89 Alleged Mudra Loans 15.89 Total 473.96

9. During course of verification of loan accounts and documents suspicious transactions in the accounts (CC & SB) of Mr. Robin Bansal the then branch head were noticed & reported by the Assistant Manager of the Branch. Subsequent verification revealed that the branch head Mr. Robin Bansal had resorted to above-mentioned alleged transactions fraudulently, credited the proceeds to his Cash Credit Account No. 060802000003001 maintained with Shamli branch and also some amount was credited to his SB account no. 060801000016822 with Shamli branch. For round tripping and fraudulent transactions he used various fake family accounts maintained with Bantikhera Branch apart from other customer accounts and family accounts with Shamli Branch.

10. It is further alleged that applicant Robin Bansal had defrauded the bank with intention to cause pecuniary benefit to himself, had created demand loans, against deposits of customers without authorisation, debited funds from the KCC & Mudra loan accounts of customers and also made fraudulent transfers from the SB accounts of customers and thus credited an aggregate amount of Rs. 477.68 lacs to his own CC account and from there transferred the funds to account of M/s India Infoline Limited account maintained with Yes Bank Mumabi. In the process the public servant had restored to criminal breach of trust, fraud and misappropriation of bank funds.

11. After aforementioned FIR was lodged, CBI proceeded with statutory investigation of concerned case crime number in terms of Chapter-XII Cr.P.C. On the basis of material collected by CBI during course of investigation, it came to the conclusion that offence complained of against named accused i.e. applicant Robin Bansal is fully established. Accordingly, the CBI submitted the police report (charge sheet) dated 18.11.2021, whereby applicant-Robin Bansal has been charge sheeted under Section 120-B read with Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 13(1)(a) of the Prevention of Corruption Act, 1988 (as amended in 2018).

12. Aforementioned charge sheet was in respect of the act of applicant regarding opening of fictitious bank account in the name of Anju Devi without the consent and knowledge of the customer. Apart from above, various transactions were made from the aforesaid account and to the aforesaid account have also been alleged against applicant. Another loan account no. 356903410000031 was opened by applicant in the name of Surendra Singh. Transactions were also made from the aforesaid account and to the aforesaid account. Demand loan account no. 356903410000032 was opened in the name of Raj Kumar by the applicant but without the knowledge and consent of the customer, which amounts to opening of fictitious account. Transactions were also made from the aforesaid account and to the aforesaid account. Demand Loan Account No. 356903410000033 was opened by the applicant in the name of Sunita Devi without the consent and knowledge of the customer and therefore, a fictitious account. Transactions were also made from the aforesaid account and to the aforesaid account. Demand Loan Account No. 356903410000034 was opened in the name of Rakesh Kumar, which was also a fictitious account. The demand loan account is signed by the then Branch Manager Robin Bansal. Transactions were also made from the aforesaid account and to the aforesaid account. Another fictitious Demand Loan Account No. 356903410000035 was opened in the name of Dharendra Verma, the loan document and the demand loan account is signed by the then Branch Manager Robin Bansal. The demand loan documents are signed by Dharendra Verma.

However, various transactions were made from the account and to the account fictitiously. A fictitious Demand Loan Account No. 3569034100000036 was opened in the name of Rakesh Kumar. The loan document for this demand loan account is signed by the Branch Manager Robin Bansal, the applicant. However, the demand loan documents are also signed by Mr. Rakesh Kumar. However, various fictitious transactions were made from the account and to the account. Fictitious Demand Loan Account No. 3569034100000037 was opened in the name of Dharendra Kumar. The loan document for this demand loan account is signed by the then Branch Manager i.e. applicant Robin Bansal. However, the demand loan documents are also signed by Dharendra Verma on the misrepresentation of Robin Bansal. Fictitious transactions from the account and to the account are alleged to have been made by the applicant. Fictitious Demand Loan Account No. 3569034100000038 was opened in the name of Nirmala. This loan account was verified by the login ID of the then Branch Manager i.e. applicant Robin Bansal. The account opening form was prepared by applicant Robin Bansal. Login ID of different officers/employees of the bank was used to verify the same. The account opening form is fake and forged. Various transactions were made from the account and to the account. Fictitious Demand Loan Account No. 3569034100000039 was opened in the name of Ompal Singh. Fictitious Login ID was used. The account opening form is prepared filled and signed as Shweta by Robin Bansal. Transactions from the account and to the account are alleged to have been made by the applicant. Fictitious Demand Loan Account No. 3569034100000040 was opened in the name of Omvir. Fictitious Login ID was used to verify the loan account. The account opening form was prepared by applicant Robin Bansal. Various transactions were made from the account and to the account. Fictitious Demand Loan Account No. 3569034100000041 was opened in the name of Sahdev. The loan document is signed by Rohtash Singh Dhir, Clerk, Indian Oversease Bank and the Branch Manager i.e. the applicant Robin Bansal. The Login ID of applicant was used for verifying the account. Various transactions were made from the account and to the account. Fictitious Demand Loan Account No. 3569034100000042 was opened in the name of N.K. Bansal (Uncle of Robin Bansal) by the applicant Robin Bansal without the knowledge of N.K. Bansal. This demand loan master is entered by the Login ID of Rohtash Singh Dheer, Clerk Indian Oversease Bank. The account was verified by the Login ID of the then Branch Manager i.e. applicant Robin Bansal. Various transactions were made from the account and to the account. Fictitious Demand Loan Account No. 3569034100000043 was opened in the name of Usha Bansal. The demand loan master is entered by the Login ID of Rohtash Singh Dheer, Clerk Indian Oversease Bank. The loan account was verified by the Login ID of the then Branch Manager i.e. applicant Robin Bansal. Various transactions were made from the account and to the account by using the Login ID of the employees of the bank.

13. In all 14 demand loan accounts against deposit were opened with fake and forged document without the knowledge of the customers or by misrepresentation of facts to them. Further, the proceeds were then transferred to the fake Saving Bank Accounts. From those Saving Bank Account the proceeds were then transferred to the staff cash credit account of Robin Bansal. The whole transactions were carried out by using the Login ID of Rohtash Singh Dheer and Robin Bansal. However, during investigation, no money transactions came to light in the bank accounts of Rohtash Singh Dheer in connection with the above fraudulent transactions.

14. As per the charge sheet, applicant Robin Bansal is alleged to have opened 14 fictitious demand loan without the knowledge of the customers and transfer the loan amount to 06 fake Saving Bank Accounts opened by him and one genuine Saving Bank Account of a customer. The documents of the fake Saving Bank Account were also prepared by applicant Robin Bansal without the consent of the customer or by cheating them. He used existing customers KYC in some Saving Bank Account opening and in some SB accounts KYC of his family members was used.

15. Apart from above, it is further stated in the charge sheet that transactions were done in Saving Bank Account No. 35690100000501 without the consent of the customer, which amounts to fraudulent transactions. Similar allegations have been made in respect of Account Nos. 35690100000786, 35690100000063, 356901000001002, 356933000000006, 356933000000008.

16. As per the charge sheet, fraudulent transactions were made by the applicant Robin Bansal in following KCC Account Nos. 356932000000042, 356902000000044, 356902000000012, 356932000000017, 356932000000077, 356932000000078.

17. Total proceeds of Rs. 4.36 lacs from the genuine bank accounts were transferred to CDCC account of Robin Bansal without the presence of customers.

18. Subsequently, the CBI submitted the supplementary charge sheet dated 31.12.2021, whereby applicant has been charge sheeted under Section 120-B read with Sections 409, 420, 468, 471 IPC and Sections 13(2) read with Section 13(1)(c) & 13(1)(d) of the Prevention of Corruption Act, 1988.

19. As per supplementary charge sheet, applicant Robin Bansal in criminal conspiracy with accused Vivek Kumar resorted to fraudulent transactions in 23 fictitious Mudra Loan Accounts to the tune of Rs. 43.90 lacs. The details of fictitious Mudra Loan Accounts is as under:-

(i). Mudra Loan Account No. 356903710000061 in the name of Omkar Son of Mawasi.

(ii). Mudra Loan Account No. 356903708000017 in the name of Mange Ram.

(iii). Mudra Loan Account No. 356903710000064 in the name of Sanjeev.

(iv). Mudra Loan Account No. 356903708000050 in the name of Sat Kumari.

(v). Mudra Loan Account No. 356903708000007 in the name of Sulabh Bansal.

(vi). Mudra Loan Account No. 356903710000033 in the name of Radha Aggarwal.

(vii). Mudra Loan Account No. 356903710000032 in the name of Rajesh Aggarwal.

(viii). Mudra Loan Account No. 356903708000018 in the name of Pushpender Bansal father of Robin Bansal.

(ix). Mudra Loan Account No. 356903710000036 in the name of Sangita Bansal mother of Robin Bansal.

(x). Mudra Loan Account No. 356903710000062 in the name of Sushil Kumar.

(xi). Mudra Loan Account No. 356903710000052 in the name of Ram Bhajan.

(xii). Mudra Loan Account No. 356903708000008 in the name of Devender.

(xiii). Mudra Loan Account No. 356903710000056 in the name of Resham Vati.

(xiv). Mudra Loan Account No. 356903431500009 in the name of Lata W/o Sudhir.

(xv). Mudra Loan Account No. 356903710000051 in the name of Geeta.

(xvi). Mudra Loan Account No. 356903710000035 in the name of Sweta Aggarwal.

(xvii). Mudra Loan Account No. 356903710000034 in the name of Julee Bansal sister-in-law of Robin Bansal.

(xviii). Mudra Loan Account No. 356903708000016 in the name of Ankit Bansal brother of Robin Bansal.

(xix). Mudra Loan Account No. 356903710000060 in the name of Ankit Kumar.

(xx). Mudra Loan Account No. 356903710000058 in the name of Rajendra (xxi).
Mudra Loan Account No. 356903710000053 in the name of Bhagat Ram.

(xxii). Mudra Loan Account No. 356903710000048 in the name of Tirath Pal.

(xxiii). Mudra Loan Account No. 356903710000063 in the name of Jony Kumar.

20. After charge sheet dated 18.11.2021 was submitted by the CBI in Court concerned, the Special Judge took cognizance upon same in exercise of jurisdiction under Section 190(1)(b) Cr.P.C. Resultantly Special Case No. 05 of 2021 (CBI Vs. Robin Bansal and others), under Sections 120-B read with Section 420, 403, 409, 467, 468, 471 IPC and Substantive Offence under Sections 403, 409, 420, 467, 468, 471 IPC and Section 13(2) read with Section 3(1)(A) of The Prevention of Corruption Act, 1988, Police Station-CBI/ACB/Ghaziabad, District-Ghaziabad came to be registered and is now said to be pending in the Court of Special Judge, CBI-3, Ghaziabad. According to the learned senior counsel, charges have been framed against applicant. As a result, the trial of applicant has commenced. However, up to this stage, only one prosecution witness has been produced by the

prosecution before Court below.

21. Mr. Dilip Kumar, the learned senior counsel assisted by Mr. Rajrshi Gupta, the learned counsel for applicant in support of present application for bail has made the following submissions:-

(A). During court of investigation, no investigation has been done to substantiate the allegations that the opening of the loan accounts or transaction of the Saving Bank Account of the existing customers were not by then those customers. There is nothing in evidence to suggest that there has been any fabrication of these documents or the signatures/ endorsement of the existing customers have been done by the applicant. A mere denial by the existing customers has been treated to be sufficient by the investigating agency to conclude that aforesaid transactions were unauthorized and fraudulently done by the applicant. In fact the customers themselves have done the transactions and have transferred the money ultimately from their loan accounts/saving bank accounts into the accounts of the applicant with an understanding that applicant who had a demat account would be doing share trading/investment on behalf of existing customers.

(B). There is no report of any handwriting expert or otherwise to suggest that any forgery or fraudulent activities have been done by the applicant or by the co-accused Vivek kumar. As such the allegation that entire transactions are the creation of applicant without the knowledge of existing bank customers does not get substantiated by any credible evidence.

(C). Co-accused Vivek Kumar whose role is similar to that of the applicant as alleged by the CBI in terms of the opening of the loan accounts as well as the saving bank transactions has already been granted bail pursuant to both i.e. the main charge sheet dated 13.11.2021 as well as the supplementary charge sheet dated 31.12.2021 by this Hon'ble Court. As such, the role of the applicant, which is on similar footing as that of Co-accused Vivek Kumar, applicant is also liable to be enlarged on bail on the ground of parity.

(D) Applicant had co-operated with investigation which had commenced after first information report was lodged in October 2018 and ultimately after its culmination into the chargesheet in November-2021. The prosecuting agency did not take any coercive steps by way of arrest or otherwise as against the applicant, as applicant had fully co-operated with the prosecuting agency, which goes to show his bonafide in co-operating with the investigation along with the undertaking which the applicant is willing to give to this hon'ble court to fully co-operate with the trial proceeding without seeking any unnecessary adjournment to cause any impediment in the progress of trial.

(E) Applicant is in jail since 06.06.2022. As such, he has undergone more than 2 years and 2 months of incarceration. There are 94 witnesses nominated in the charge

sheet (36 witnesses in the first charge sheet and 58 witnesses in the supplementary charge sheet). Though charges have been framed against applicant and the trial of applicant has already commenced. However, the same is proceeding at a snails pace. Up to this stage only one prosecution witness has been adduced by the CBI. In view of above, there is no likelihood of the trial of applicant getting concluded in near future.

(F). Applicant is the sole bread earner of his family, which comprises for his wife namely Shweta Agrawal, who is a homemaker and two minor children namely Satwik Bansal aged about 8 years and Ishani Bansal aged about 1.8 years old and also added responsibility of his aged parents, who fully dependent on the applicant for financial and other supports being of an advanced age and dependent on the applicant.

(G). On the edifice of aforesaid submissions, the learned senior counsel thus concludes that applicant be enlarged on bail on humanitarian grounds. In case, the applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with the trial.

22. Per contra, Mr. Gyan Prakash Srivastava, the learned Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing CBI has vehemently opposed the prayer for bail. He submits that since applicant is a named and charge sheeted accused, therefore, he does not deserve any indulgence by this Court.

23. It is next contended by the learned Deputy Solicitor General of India that as per the charge sheets submitted against applicant, it is evident that large scale financial irregularity has been committed by the applicant. The account holders have been kept in dark. The applicant has involved his various family members in the crime committed by him. Act of the applicant falls in the realm of loss of confidence of the employer. Applicant is guilty of forging false documents and also doing financial transactions without the knowledge of the account holders, which are contrary to the norms of the bank. On the above conspectus, it is thus sought to be urged that considering the nature and gravity of offence, no indulgence be granted by this Court in favour of applicant.

24. In rejoinder Mr. Dilip Kumar, the learned senior counsel for applicant has first rejoined the submissions earlier urged by him as noted herein above. He further submits that since the charge sheet has been submitted against applicant, therefore, the entire evidence sought to be relied upon by the prosecution against applicant stands crystallized. However, up to this stage, no such circumstance has emerged necessitating the custodial arrest of applicant during the pendency of trial. As such, applicant is liable to be enlarged on bail. In support of above, he has relied upon the judgement of Supreme Court in Sumit Subhashchandra Gangwal Vs. State of Maharashtra, 2023 LiveLaw (SC) 373 (Paragraph 5). Furthermore, the evidence sought to be relied upon by the prosecution against applicant is documentary in nature, therefore, in case, the applicant is enlarged on bail, then in that eventuality it cannot be said that applicant shall tamper the evidence. At this juncture, the learned senior counsel referred to the judgment of Supreme Court in Mahdoo Bava Vs. C.B.I., 2023 SCC OnLine SC 299. He lastly contended that that right to speedy trial is now recognized as a fundamental right of an accused. In the present case, the trial of applicant

commenced in the year, 2021. As such, on date, a period of almost three years is about to expire since the date of submission of the charge sheet. However, the trial of applicant has not yet concluded. Applicant is in jail and therefore, he cannot be held responsible for the delay in progress of trial. The liberty of applicant cannot be jeopardized on account of the lackadaisical approach of the prosecution in pursuing the trial. Considering the fact that there are total 94 witnesses in the charge sheet, there is no possibility of the trial of applicant getting concluded in near future. He, therefore, reiterates that applicant be enlarged on bail.

25. Having heard, the learned senior counsel for applicant, the learned Deputy Solicitor General of India assisted by Mr. Sanjay Kumar Yadav, the learned counsel representing CBI, upon perusal of record, evidence, nature and gravity of offence, complicity of accused, accusation made and considering the rival submissions urged by the counsel for parties, this Court finds that applicant is a charge sheeted accused. Applicant has been charge sheeted by the CBI in respect of an economic offence, the value of which is 473.97 lacs. Therefore, irrespective of the varied submissions urged by the learned senior counsel in support of present application for bail as noted herein above but without making any comment on the merits of the case, this Court declines to enlarge the applicant on bail.

26. As a result, the present applications for bail fail and are liable to be rejected.

27. They are, accordingly, rejected.

7. Learned counsel for applicant submits that the FIR giving rise to the present applications for bail was lodged on 25.10.2018. The applicant is a bank employee and therefore, prosecution sanction were mandatorily required in terms of Section 19 of the Prevention of Corruption Act. The same was granted by the Deputy General Manager of the Bank, vide sanction order dated 05.11.2021. The first charge-sheet/police report was submitted against applicant on 13.11.2021 in which 36 witnesses were nominated as prosecution witnesses. After submission of aforesaid charge-sheet/police report, cognizance was taken upon same by the jurisdictional magistrate/CBI Court in exercise of jurisdiction under Section 190(1)(b) Cr.P.C. vide cognizance taking order dated 08.12.2021. Subsequently, a supplementary charge-sheet dated 31.12.2021 was submitted against applicant/appellant in which 58 prosecution witnesses were nominated. Cognizance was taken by Court concerned upon the aforesaid supplementary charge-sheet/police report vide cognizance taking order dated 19.04.2022. Court below thereafter framed charges against applicant in exercise of jurisdiction under Section 228 Cr.P.C. vide framing of charge order dated 20.12.2023. However, upto this stage only 3 prosecution witnesses have deposed before court below. The details of the same are as under:

(i) PW-1 Chandramani Zaili (DGM) who deposed before court below on 06.02.2024.

(ii) PW-2 Deepak Kalra who deposed before court below on 18.12.2024.

(iii) PW-3 Jitendra Pal Singh who deposed before court below on 09.01.2025.

8. On the above premise, the learned counsel for applicant submits that the trial of applicant is of the year 2022 i.e. Special Case No.01 of 2022 (CBI Vs. Robin Bansal) now pending in the Court of Special Judge CBI, 3, Ghaziabad. Even though a period of 3 years and 8 & 1/2 months has expired from the date, aforesaid special case came to be registered i.e. on 04.01.2022, the trial of applicant has not yet concluded. The trial is not proceeding at the required pace but at a snails pace and therefore there is no likelihood of the trial getting concluded in near future. Since applicant is in custody therefore it cannot be said that delay in the progress of trial is on account of accused applicant himself. With reference to the time period in which the prosecution witnesses have deposed before court below, the learned counsel for applicant submits that the delay in the progress of trial is on account of the lackadaisical approach on the part of prosecution in pursuing the trial and not due to applicant.

9. Referring to the judgment of Supreme Court in Abdul Rehman Antulay & Ors. Vs. R. S. Nayak & Anr., 1992 (1) SCC 225, it is urged by the learned counsel for applicant that right to speedy trial is now recognized as a fundamental right of an accused. Since aforesaid right of accused applicant stands infringed on account of delay on the part of prosecution in pursuing the trial, therefore, applicant is liable to be enlarged on bail. Even otherwise the evidence sought to be relied upon by the prosecution against accused applicant is substantially documentary evidence. Once the charge-sheet/police report in terms of Section 173 (2) Cr.P.C. has already been submitted against applicant, therefore, the entire evidence sought to be relied upon by the prosecution against applicant stands crystallized. However irrespective of above, no such incriminating circumstance has emerged on record warranting custodial arrest of applicant during the pendency of trial. On the above premise, it is thus urged by the learned counsel for applicant that applicant is liable to be enlarged on bail. In case, the applicant is enlarged on bail, then in that eventuality, it cannot be said that applicant shall either tamper with the evidence or shall hamper the Court's trial.

10. According to the learned counsel for applicant, no final decision has yet been taken in the departmental proceeding pending against applicant. It is also an additional ground to enlarge the applicant on bail. Even otherwise applicant is a man of clean antecedents having no criminal history to his credit except the present one. It is thus contended by the learned counsel for applicant that in view of above and also the period of incarceration undergone, applicant is liable to be enlarged on bail.

11. Per contra, Mr. Rahul Srivastava, the learned counsel representing CBI-opposite party has vehemently opposed these repeat applications for bail. He submits that in view of the observations made by this Court in the earlier order dated 31.08.2024, no case for grant of bail to accused applicant is made out. He submits that the applicant has already been charge-sheeted under Section 409 IPC in which the punishment prescribed is life imprisonment. In the totality of the facts and circumstances which have already been noted by this Court in the earlier order, the learned counsel representing CBI submits that applicant is guilty of misusing a sum of Rs. 4.73 Crores. Considering the nature and gravity of offence and also the period of punishment provided for the offence complained of against applicant, no indulgence be granted by this Court in his favour. However, he could not dislodge the factual and legal submissions urged by the learned counsel for applicant in support of the present repeat applications for bail as noted above.

12. Having heard the learned counsel for applicant, the learned counsel representing CBI, upon perusal of record, evidence, nature and gravity of offence, complicity of accused, accusation made and considering the rival submissions urged by the counsel for parties, this Court finds that the first bail application of applicant was rejected by this Court by a detailed order dated 31.08.2024, however in view of submissions urged by the learned counsel for applicant with regard to the progress of the trial which fact has not been contradicted by the learned counsel representing CBI, this Court finds that there are as many as 58 witnesses in the charge-sheets submitted against applicant, the trial of applicant is of the year 2022 (04.01.2022) , on date, a period of 3 years and 8 & 1/2 months has expired, up to this stage only 3 prosecution witnesses have deposed before court below from 06.02.2024 to 09.01.2025, in view of above, there is no likelihood of the trial of applicant getting concluded in near future, the charge-sheet/police report has already been submitted against applicant, therefore, the entire evidence sought to be relied upon by the prosecution against applicant stands crystallized, the most of the evidence relied upon by the prosecution against applicant is documentary evidence yet in spite of above, the learned counsel representing CBI could not point out any such incriminating circumstance from the record necessitating the custodial arrest of applicant during the pendency of trial, the judgments of the Supreme Court in Sumit Subhashchandra Gangwal Vs. State of Maharashtra, 2023 LiveLaw (SC) 373 and Mahdoo Bava Vs. C.B.I., 2023 SCC OnLine SC 299, the right to speedy trial is now recognized as a fundamental right of an accused, said right of applicant stands infringed inasmuch as trial is not proceeding at the required pace but a snail's pace, since applicant is in custody he cannot be held responsible for the delay in the progress of trial, on account of lackadaisical approach on the part of prosecution in pursuing the trial the liberty of the applicant stands jeopardized, the clean antecedents of applicant, the period of incarceration undergone, therefore, irrespective of the objections raised by the learned counsel representing CBI in opposition to these repeat application for bail, but without making any comments on the merits of the case, applicant has made out a case for grant of bail during the pendency of trial.

13. In view of the discussion made above, these repeat applications for grant of bail succeed and are liable to be allowed.

14. They are, accordingly, allowed.

15. Let the applicant- Robin Bansal involved in the aforesaid case crime be released on bail on his furnishing a personal bond and two sureties each in the like amount to the satisfaction of the Court concerned with the following conditions, which are being imposed in the interest of justice:-

(i) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code.

(iii) In case, the applicant misuses the liberty of bail during trial, then Court below, in order to secure his presence, can issue proclamation under Section 82 Cr.P.C. and if the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.

Order Date :- 22.08.2025 Vinay